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Imitating God ‘Clothed in Glory’: A Voluntarist Reading of Malebranche’s Natural and Political Legislation

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ABSTRACT

Building on previous research into the ‘politicization’ or ‘theological-political analogy’ of Nicolas Malebranche, this paper seeks to uncover the dimensions of voluntarism – particularly political voluntarism – within his philosophy and their compatibility with theories of absolute sovereignty in seventeenth-century Europe. These dimensions are often obscured by Malebranche’s seemingly unwavering intellectualist stance. This study challenges Frank’s Augustinian interpretation, which argues that Malebranche’s moral order precludes a self-consistent ‘Schmittian’ secularization. Instead, it demonstrates that Malebranche conceived secular sovereignty as an exclusive imitation of God’s omnipotence, employing a voluntarist framework to account for both natural and political obedience. Through comparative analysis, it is argued that, despite the eternity and immutability of moral principles, Malebranche’s rejection of the Cartesian conflation of reason and will – combined with his emphasis on the contingency of God’s choices – imbued his natural laws with a metaphysical and epistemological voluntarist structure. Moreover, regarding the monopoly over interpretation and the selective realization of moral principles, Malebranche’s political legislation mirrored a voluntarist and ‘absolutist’ framework akin to his conception of natural law. By disentangling irresistible power from an irreproachable yet essentially incomprehensible reason, Malebranche appropriated the concept of ‘sovereignty’ from his contemporary political thought and applied it to both theology and human politics.

KEYWORDS

Malebranche; Law of nature;
Natural law; Voluntarism;
Absolutism; Sovereignty

Among the thinkers who contributed to the seventeenth-century philosophical-scientific revolution in Europe, Nicolas Malebranche (1638–1715) was certainly not the first to attribute a comprehensive ‘law’ to nature. He was anticipated, indisputably, by Descartes in *Principles of Philosophy* (1644) and, more controversially, by Galileo (1615), Bacon (1620) and Spinoza (1670).¹ Nor did Malebranche attempt to engage with the concept of ‘natural law’ (*lex naturalis*) already prominent in moral philosophy of the period. However, he may have been the first to imbue mechanical motions and efficient causes with moral norms – analogous to those governing human activities – and to

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express these norms in the laws of nature, or *general laws* (*lois générales*), which are positively selected and normatively sustained by God's 'general will' (*volonté générale*). Building on previous research into the 'politicization' or 'theological-political analogy' of Malebranche, this paper seeks to uncover the dimensions of voluntarism – particularly political voluntarism – within his system and to explore their compatibility with theories of absolute sovereignty in seventeenth-century Europe. These dimensions, however, are often overshadowed by his ostensibly rigid intellectualist stance. By separating an irresistible will from an irreproachable yet fundamentally incomprehensible reason, Malebranche applied the concept of theomorphic 'sovereignty' from theology to human politics. This paper begins by offering a philosophical comparison of paradigms concerning the 'laws of nature' – specifically, the Thomistic, Cartesian, and Malebranchean-Leibnizian paradigms. It aims to elucidate why Malebranche's distinction between God's will and reason enables him to conceptualize a moral and teleological legislator for mechanical motion and how this doctrine supports a metaphysical and epistemological voluntarist interpretation. The second section examines the relationship between Malebranche's natural and moral legislation. Drawing on a new interpretation of *Treatise on Ethics*, it argues that Malebranche's sovereign legislator reflects a voluntarist and 'absolutist' structure analogous to its divine counterpart.

1. Laws of nature and voluntarism

1.1. Laws of nature before Malebranche

Following the scholastic (and Cartesian) traditions, Malebranche understood nature as a holy artefact: it is created and sustained by God in a constant way. However, in a radical departure from the Aristotelians, he believed that the 'forms' or immanent qualities of created substances are not at all qualified to explain natural interactions and movements: the real cause must reside solely in the unmediated power of God, the legislator and executor of 'laws of nature' or 'general laws'.² Natural phenomena and their morality do not reveal the immanent power or wisdom of individual substances, but rather the pattern of God's behaviour, which is regulated by His self-imposed normativity. This normativity, expressed in the form of mechanical kinematic rules, is what is known as 'law of nature' in the early modern sense. Despite the long-standing controversy between 'Arnauldian' and 'Leibnizian' interpretations,³ most scholars agree that Malebranche's 'general laws' constitute such a key normativity of God's action on the world. The 'generality' of law is manifested in the internal coherency of the world and defended by minimizing 'miracles' that lack perceptible 'occasional' causes – in this framework, God ensures that every natural motion has a discernible physical cause and avoids intervening irregularly or producing too many supernatural miracles, even though both regular actions and miracles are realized through His omnipotence and He retains the full power to enact any of them.

To understand the voluntarist structure of this legislation and the relationship between Malebranche's natural and moral laws, it is necessary to clarify the divergence between the '*optimal-world* efficacy' paradigm he shared with Leibniz and the '*immutable* efficacy' paradigm of the Cartesians. Both emerged as antitheses to scholasticism which simultaneously advocated (1) a teleological understanding of God's creation and (2) a distinction between normative, prescriptive 'law' and the eternal created 'order'. According to the Thomistic tradition, law (*lex*) must be 'promulgated' to voluntary agents in order to be prescriptive;

thus, ‘natural laws’ are seen as God’s precepts, discovered by right reason and promulgated by endowing human beings with a ‘natural inclination’.⁴ It is applied to human associations and is thus limited in geography and essentially prescriptive. The created order of nature is not understood to be governed by a universal, homogeneous kinematic or dynamic ‘law’, nor is the purposiveness of nature – its arrangement toward the universal church and salvation – realized through such rules of mechanical movement. For Aquinas and scholastic Aristotelians after him, law finds its proper audience in human beings only, and natural objects such as unanimated things, plants and beasts cannot be said to partake in the law of God, ‘except by similitude’.⁵ Although Aquinas actually drew an analogy between the universe being ‘governed (*gubernatur*) by divine reason’ to a community being governed by a ruler,⁶ he did not mean to assimilate the eternal dominion in truth to the legislation towards essentially free human minds in any sense. Furthermore, an analogy between God and a human legislator, if to be drawn, would inevitably lead to an anthropomorphic view of the divine being, with *reason* and *will* appearing separate. This would also raise the question of whether God could have freely willed a different set of laws or chosen to create another world, which underlies the *intellectualist-voluntarist* debate. While later voluntarists deny that God’s creation is subject to anything external to the divine will, intellectualists hold that eternal, ‘Platonic’ ideas or plans exist somewhere in God or between God and the created world, to which divine will is impossible to alter.⁷ It is in the sense that rules or plans are substantially adhered to in God’s creation that Aquinas calls the ‘laws’ established for irrational beings ‘*eternal*’.

Descartes initiated a movement that rejected the teleological understanding of God and found the world of inanimate bodies in a self-coherent system of efficient causes governed by kinematic laws. In *Principles of Philosophy*, he enumerates three laws of nature⁸ that are applicable to the movement of physical objects, marking a decisive move to attribute a *lex* to nature itself. The ‘formal causes’ of natural bodies are abolished, along with the entire story of ‘final causes’ in God’s legislation. Since mortal, finite human beings can never understand nature ‘from the purposes which God or nature may have had in view when creating them’;⁹ such a study is futile and fruitless. Descartes did not deny that God may have some intentions and purposes hidden for us; what he wanted to emphasize is that, in the holy being, there is no distinction like the one we perceive in human minds between an intentional deliberation, reasoning or grasp of a desire and the willingness or choice to fulfil that desire. The efficacy and constancy of laws as ‘secondary causes’¹⁰ do not stem from a rational choice towards an idea of good, but from the ‘*immutability*’ of God who legislates and governs only as the primary *efficient* cause. This shows Descartes’ distance from both the intellectualist ‘*eternity*’, which holds that legislation comes from God’s necessary and substantial ideas, and the voluntarist contingency, which insists that legislation should only be known as the choice of an omnipotent will that suspends rational judgment. Laws are not adopted because they are good but because their adoption and realization are themselves the same as their goodness. God’s omnipotence is indicated by a ‘supreme indifference’ with no preceding teleological criterion recognized. Divine reason, divine will, and the ability to create are always the same, with no temporal or logical sequence applicable, ‘even conceptually’:

[I]t is impossible to imagine that anything is thought of in the divine intellect as good or true, or worthy of belief or action or omission, prior to the decision of the divine will to

make it so. I am not speaking here of temporal priority: I mean that there is not even any priority of order, or nature, or of 'rationally determined reason' as they call it, such that God's idea of the good impelled him to choose one thing rather than another.¹¹

For Descartes, there is no serious analogy between holy and mundane legislators.

To equate reason with will in the holy being involves a potential danger, nonetheless. If every occurrence in the world is a necessary emanation of God's efficacy, then everything is but engendered with equal metaphysical and moral status. Spinozist law can thus be seen as a radicalization of Cartesian simplicity and immutability, which subsumes both nature and human activity into an indifferent, indiscriminate, geometrically calculable efficacy. The intuitive reason for the existence of what we call law is that things that actually happen *could not* or *ought not* happen, or men actually do things they *could not* or *ought not* do. Spinoza, on the contrary, not only incorporated the *normative* principle of moral laws into the factual or *physical* emanation of that immutable God¹² but also physical laws into 'eternal truth'. For Descartes, as a comparison, the way God is acting as the founder of eternal abstract truth (like geometric axioms) is different from the way He is acting as the creator and maintainer of the physical world.¹³ We can, for example, metaphysically imagine a world in which objects do not maintain their kinematic status, but we cannot imagine a triangle with two obtuse angles in the same way: the structure realized by laws of motion cannot be understood with the same kind of reason or necessity as geometric or algebraic truths. This highlights the irreducibility between God as the *metaphysical creator* and God as the *creator of eternal truth*, and it is the very irreducibility that Spinoza challenged by treating physical laws as geometrically provable theorems. With God being the only substance, Spinoza defined law as that according to which 'each individual ... acts in one and the same fixed and determinate way'.¹⁴ What is 'decreed' by God is always real, perfect and necessary due to the unity of intellect, will, and the efficacy of the will:

God really acts and guides all things only from the necessity of his own nature and perfection; ... his decrees and volitions are eternal truths, and always involve necessity.¹⁵

Therefore, it is not proper to call them 'laws' or 'decrees': they do not need to be imposed or promulgated since what is against the 'laws' cannot even be possible. Spinoza came to the conclusion that nature and human beings are governed by a univocal divine principle, but this was achieved by cancelling both the *normative* and the *metaphysical* sense of laws. Like Spinoza, Malebranche believed that God participates in the world in a far more comprehensive way and attributed certain legislative principles to both the order of nature and human activities; while the entire story began with a refutation of the Cartesian-Spinozist unity of God's will and reason, as well as what Garber called the Hobbesian-Spinozist geometrical picture of physics,¹⁶ leading to a subversively different imagination of the divine legislator for both nature and human society.

1.2. Leibniz, Malebranche and the metaphysical legislator

Following his arguments in *The Search After Truth*, Malebranche defined nature as follows in *Treatise on Nature and Grace* (1680):

[T]he general laws which God has established for the construction or preservation of His work by the simplest ways, by an action that is always uniform, constant, and perfectly worthy of an infinite wisdom and a universal cause.¹⁷

Equating nature with laws of nature reflects a Cartesian legacy, wherein the inner workings of the physical world are fully explained by efficient causation. However, by highlighting that God follows the 'simplest way' and by distinguishing between 'infinite wisdom' and 'universal cause', Malebranche revived a 'formal distinction'¹⁸ between God's intellect and will and granted God rational options in legislation. Malebranche's remedy for Cartesianism involves accommodating a teleological God as a *metaphysical creator* who positively chooses to realize a mechanical system according to some *normative* principles. To avoid the Spinozian regression from normativity to physicality and then to geometric necessity, it is crucial to distinguish between God's reason and His efficacious will. This distinction ensures that reality is not simply a system of eternal truths derived from God's basic properties; instead, it is reasonably but contingently selected from countless possible worlds, guided by the normative concept of an 'optimal world'. Nature should no longer be seen as a mere self-manifestation of God but as a *positive* nature – something *chosen* to be realized according to specific reasoning that indicates both its moral propriety and structural contingency, serving as the rationale for its selection among other metaphysically possible worlds. Malebranche underlined two absurd consequences of Cartesian-Spinozist divine simplicity. First, if nature were derived from holy will and holy reason without any element of choice, the mundane world would be a necessary emanation of God and pertain to an eternity, seeing that Spinoza preferred a Thomistic 'eternal order' to 'laws' for nature. However, we cannot find any necessity for such doing in the perfect, self-sufficient being – for which Malebranche negated that the creation of nature is a must and denied the immanent divinity of nature.¹⁹ Second, if God knew and willed everything indifferently, this could lead to a serious theodicy problem: all natural irregularity and disorder, as well as human depravity, corruption and wickedness, would then be masterpieces of God's indiscriminate workmanship.

To simultaneously uphold God's essential justice and universal causality, Malebranche, preceding his friend Leibniz's *Discourse on Metaphysics* (1686), endowed divine legislation with a rational principle of 'simplicity' or 'economy': the world is governed by a reasoning that aims to create the most perfect world possible. There are many comparable points between the two philosophers, who sought to resurrect a teleological God above a universe of efficient causes.²⁰ Both of them rejected Hobbes and Spinoza's worldview that physical and even moral structures are reducible to a set of corollaries of eternal, mathematical axioms: the way that physical laws are necessitated by God's choice should be clearly distinguished from the way that a geometric theorem is necessitated by its preconditions. For Leibniz, God does not choose to realize this world simply because of its logical consistency but has '*sufficient reasons*', in line with His normative ideas and plans, which make nature a certain contingency with respect to God's purpose and choice. Leibniz listed the principle of 'sufficient' or 'determinant' reason as a principle for 'contingent truths', 'truths of fact' rather than 'truths of reasoning', the former exhibiting a structure of '*hypothetical necessity*'²¹ where the consequence is contingent upon premises that cannot be reduced to logical or geometrical truths through finite-step analysis.²² For instance, since the proposition 'objects tend to maintain their kinematic state' cannot be derived as a logical or mathematical necessity from an analysis of elements such as 'objects', 'vacuum' or 'state of motion', we must understand it as a special rule established by God for some specific, 'sufficient' reason. This reason

ensures that objects exhibit this behaviour rather than other logically or mathematically possible alternatives. Accordingly, the uniform motion of an object in the absence of force is necessary only in a 'hypothetical' sense – that is, based on the assumption of the constancy of the created kinematic laws. Therefore, this structure is closely linked to Leibniz's characterization of God as the final cause and the 'sufficient reason' for nature, since the choice of the best world is such an irreducible fact – the modal characterization is that, if God had not chosen the best world or had different standards for what constitutes 'the best', the world would not be as it is, even though the hypothesis does not reflect the actual preference of God's intellect. The world is therefore no longer a 'corollary' of God, since this metaphysical choice cannot be reduced to a necessary consequence of some omniscient, omnipotent, or benevolent qualities.

Similarly, though in a different way, Malebranche holds that while God is capable of creating an 'absolutely perfect' world where miracles are frequently exerted to smooth out the world's chaos and unevenness, He chooses not to do so. This is due to a constant '*arbitrary*' conformity to the begotten laws of nature – the law of maintenance of movement state and the law of kinematic volume exchange in collisions²³ – which express God's general volition towards 'simplicity' as a principle of divine action:

From this we must conclude that God, discovering in the infinite treasures of His wisdom an infinity of possible worlds, as necessary consequences of the laws of motion which He could establish, was determined to the creation of the one which might be produced and preserved by the simplest laws or which must be the most perfect possible, considering the simplicity of the ways necessary for its production or preservation.²⁴

Despite their different models of causality and views on the optimal world, the two philosophers shared parallel structures in their understanding of the relationship between God's 'sufficient reason' and the internal coherence of nature: the principle of simplicity, like Leibniz's perfection, is not something that God chooses or wills unconditionally. It may be helpful to clarify both the similarities and differences between the two philosophers in their characterizations of God as such a metaphysical creator. Leibniz admired Malebranche's 'beautiful use of final causes' in the letters and saw it as a crucial common point they shared against Descartes' doctrine, since they both saw God's choices as teleological rather than expressions of either necessary or indifferent efficacy.²⁵ Larmore famously interpreted their divergence as a split between a '*conséquentialiste*' and a '*déontologique*' position: for Leibniz, God's creation points to a strictly 'optimal' *result*, while Malebranche understands this 'optimum' as a coherent and consistent *code* followed by God – a '*simplicity*' that cannot be equated with or reduced to a practically best possible outcome.²⁶ Nadler noted, based on their later correspondence, that despite their disagreement on whether simplicity serves 'the excellence of the whole work', both philosophers agreed that God's omnipotence leaves open the possibility of alternatives.²⁷ However, *contra* Nadler, Schmaltz argued that Leibniz's God possesses a more essential and concrete moral necessity than Malebranche's God; the latter cannot be understood as a Leibnizian sufficient reason, as there is no 'single consideration' determining a specific manner of creation.²⁸ In Leibniz's modal characterization, God as the 'sufficient' reason for the world implies that He is the reason for the 'best' world, since 'sufficient reason' itself contains an exclusive and specific explanation for why the world exists as it does rather than in any other way. We can imagine a worse world as the hypothetical consequence of a

worse ‘God’, but we cannot imagine that a just God might be a sufficient reason for a worse world or a non-world, even though His choice is necessary only in a metaphysical and moral sense. For Malebranche, things were quite different. An essential reason he referred to laws of nature as ‘arbitrary laws’ (*loix arbitraires*) is that he did not consider the principle of simplicity necessary for God’s justice, nor could God’s justice provide the sufficiency for explaining simplicity. God, as he emphasizes, is a perfect and self-sufficient substance who does not emanate Himself (or emanate Himself in any specific way) out of necessity; He holds the power and moral legitimacy not only to refrain from creating a world but also to create one that is not particularly the best:

As God necessarily loves himself, he also necessarily follows the rules of his wisdom. But as creatures are not part of his Being, he is so self-sufficient that nothing obliges him to produce them; he is very indifferent or very free with regard to them. ... creatures are not necessary emanations of the Divinity, and ... they are essentially dependent on a free will of the Creator.²⁹

For Malebranche, since the creation of bodies is itself contingent and ‘arbitrary’, the laws of bodies and mind–body unions are ‘arbitrary laws’. Certainly, the ‘arbitrariness’ here does not mean an indifference in the sense of classical voluntarism: rather, a determinate metaphysical-moral reasoning, not an indifferent will, is always responsible for the particular structure of the world. However, unlike Leibniz, we cannot identify God’s justice with God’s creation and maintenance of the world according to a simplicity principle. Simplicity merely describes an accidental code for constructing a physical system and does not attempt to exhaust the possibilities of God’s metaphysical creation as ‘perfection’ does – this becomes very evident when we consider that Malebranche admitted that God retains the omnipotence to build a more perfect world or to remedy the everyday world through an extraordinary use of miracles (e.g. making rainfall proportional to the fertility of the land or eliminating occasional human diseases).³⁰ Therefore, the ‘arbitrariness’ of the principle not only implies that God can deviate from simplicity when the rational order requires it, but also suggests that simplicity is not the only possible legal expression of God’s rational justice – seeing that Malebranche does not deny the ‘perfections’ that could exist in those hypothetical miracles and the divine justice they might convey, nor does he deny God’s omnipotence to summarize those unrealized perfections into a potential set of rules. This brings us to another key point, namely the distinction between physical law as ‘arbitrary law’ and the ‘immutable order of justice’, a ‘*substantial* law’³¹ or even ‘*eternal* law’³² for God:

It ought here to be observed that the essential rule of the will of God is the immutable order of justice ... For the law of order, which requires that a righteous person should suffer nothing against his will, being essential to God, the arbitrary law of the communication of motions must necessarily be subservient to it.³³

In the sense that God deliberately chooses to observe laws of nature in the everyday world, and that this choice is ‘subservient to’ a broader and more substantive principle of divine justice, laws of nature can be called divine *positive* laws. These positive physical laws are not conclusions deduced from an immutable divine intellect or the only possibility that satisfies divine intellect – they are not from eternity but rather the omnipotence of God, who autonomously adheres to the general rules while reserving the full power and justice of particularity, to be activated whenever appropriate.

1.3. Malebranche's voluntarism in natural legislation

Malebranche is often classified as an 'intellectualist', advocating the classical subordination of will to immutable reason, given his emphasis on the reasonableness of God's choice and his rejection of the image of an autocratic, undefined divine legislator. However, based on our discussions above, a clear 'voluntarist' picture can be given, provided we clarify these obscure and ambiguous categorical terms and unpack the multi-layered connotations of Malebranche's voluntarism. (1) First, he was undoubtedly *not* a classical *theological voluntarist*,³⁴ as he did not believe that God's omnipotence alone fully accounts for the natural or moral structures of the world, nor that His choice corresponds only to an indifferent will. He was a thorough theological intellectualist who believed that the created world must reflect God's rational purposes, plans and choices and that the world is constant and consistent because of the constancy and consistency of God's reason. The constancy of reason ensures that God coherently adheres to His laws and does not perform excessive miracles, change the structure of the world, or annihilate it out of caprice or whim.³⁵

(2) Second, I believe that it is equally consistent, according to what we have seen, that Malebranche was a *metaphysical voluntarist*, if metaphysical voluntarism means that the world is contingent on a choice not itself inevitable for God's intellect – a classical definition adopted by Milton.³⁶ This paper distinguishes between 'theological voluntarism' that concludes the contingency of the world from the indifference of will and 'metaphysical voluntarism' that embraces the contingency of the principle of metaphysical creation with respect to divine reason. Descartes is often regarded as a 'voluntarist' due to his notorious doctrine of the creation of eternal truths and his denial that the maintenance and perfection of the world require a further reason beyond God's will. However, it is significant for us to understand this only as a specific kind of theological voluntarism, since the Cartesian God's metaphysical efficacy cannot be regarded as a contingent, selective expression of His reason in any modality: the two are identical and equivalently constant and immutable. Similarly, when the Jansenist Arnauld, who held to the Cartesian identity, argued against Malebranche's 'general volition',³⁷ he emphasized that there is no intelligible distinction between God acting in accordance with laws and acting by particular wills (i.e. performing miracles). In his structure, the unique and individual construction of this world exhausts the reason and justice of God's creation: since both law-keeping and miracle-performing are necessary for the perfection of this world, there is no further reason to think that the omnipotent God would have a preference between the two. For Malebranche, on the contrary, God's 'positive' choice or efficacious will cannot fully encompass his rational thinking or demonstrate the full possibilities of His efficacy. His theoretical opponents were not 'legal-positivists' in the sense in which he understood Hobbes and Locke³⁸ – no one in the seventeenth century believed that a piece of law could be legalized without an underlying rational or moral principle – but rather those Cartesians who failed to distinguish a realization of omnipotence guided by arbitrary rules from omniscience and supreme justice. What really matters is not that the world is in God's knowledge and foresight, but that the realized world is *not a necessity* for His knowledge and foresight.

It is fundamental to Malebranche's optimal-world theory that a physical model guided by simplicity is neither the only realizable option nor the sole criterion considered by

God, in light of our distinction between his and Leibniz's metaphysical legislators. This demonstrates that physical laws cannot be regarded as mere corollaries of 'immutable', 'eternal' morality: Malebranche did not simply attribute God's choice to 'justice' or something like that, and a teleology towards universal church was used to explain the purpose of genesis rather than the rationale behind physical laws.³⁹ In fact, as we have seen, the realization of simplicity is precisely based on the sacrifice of many achievable perfections, which he elaborated upon by introducing concepts such as 'proportion' or God's self-love.⁴⁰ Malebranche, in fact, was explicit in rejecting discussion of the 'proportion' between the created world and God Himself, restricting the concept to a certain optimal correspondence between the work and God's *action* ('*l'action infinie de la volonté*'), i.e. the laws with the principle as a consequence of choice:

But the World is not worthy of God: it has no proportion with God, for there is no relation between the infinite and the finite. ... God cannot therefore resolve to do anything, if a Divine person does not join in his Work to make it divine and thereby worthy of his pleasure, and proportionate to the infinite action of his will.⁴¹

He was cautious in avoiding any understanding of God's material emanation and its particular modes as a process of demonstration that could be governed or predicted by mathematical or moral presets – the (for God) calculable ratio between His principled actions and the perfection of creation should be distinguished from His rational choices and the reasons for acting in accordance with that ratio. As Moreau and Schmaltz emphasized, although Malebranche attempted to articulate this optimal proportion through a quantitative model, this, on the one hand, leaves open the possibility of achieving a morally equivalent world by adjusting the ratio between simplicity and perfection; and on the other hand, it also suggests that God's choice neither presupposes nor results in the necessity of a particular metaphysical structure, whether for moral reasons or due to mathematical implications contained within the ratio.⁴² Malebranche argues that God 'is indifferent in his plans ... only when the relation, composed of the beauty of the world and the simplicity of his ways, is exactly equal',⁴³ meaning that at least insofar as the proportion itself carries a certainty comprehensible by God's intellect (to which morality and mathematics are essential), it does not exclude the possibility of multiple optimal worlds. Therefore, God's choice could only be regarded as the direct consequence of His will, rather than any inference of moral or structural necessity. This choice, of course, is made with sound and unchangeable reasons, but it presupposes the existence of alternatives that cannot simply be dismissed as irrational or unjust. Still, we might want some more explanation to prove that the *will* plays a key role in allowing God to *arbitrarily* choose one of His plans and refrain from disturbing nature for the sake of perfection. Regrettably, Malebranche's text does not offer additional evidence. At least in another important respect, however, the will does determine the relationship between laws of nature and finite intelligent beings – an aspect Larrère called 'epistemological voluntarism'.⁴⁴

(3) Malebranche revealed himself as an *epistemological voluntarist* by maintaining that we cannot know or understand God's legislation except through His will and the positive effects it produces. Reason has no efficient power on its own; it is solely God's will that carries out His plans, and His will is 'necessarily efficacious' without the need for instruments.⁴⁵ Since we cannot infer the necessity of creation through a 'contemplation' or

analysis of the notion of the perfect, self-sufficient Being, we cannot recognize the positive laws of nature in the same *a priori* way that we know moral principles. Without ‘revelation’, we have no way of knowing whether there are bodies at all, let alone the specific terms of physical laws:

Actually, the existence of bodies is arbitrary. If there are any, it is because God willed to create them. ... But the volition to create bodies is not necessarily contained in the notion of the infinitely perfect Being, of the Being which is fully self-sufficient. ... Thus, there is no way apart from revelation by which we can be assured that God has indeed willed to create bodies, as long as ... our mind itself can know them only in the ideas representing them and sense them only through its modalities or sensations.⁴⁶

Similarly, since we cannot learn about laws and the principle of simplicity through an analysis of God’s intellect, we only have an empirical and acquired grasp of them. Malebranche was careful not to describe or compare models of possible worlds or explain why *this* world or *this* system of physical laws is the simplest.⁴⁷ He did not assume that we could fully comprehend the details or intentions behind God’s legislation. Yet, our indiscriminate obedience to His irresistible will (efficacy) and our knowledge of His morality warrant our trust in His positive laws, laws that have sufficient reasons, even though we can only understand them ‘confusedly’.⁴⁸ It is notable that for Malebranche’s contemporaries and his eighteenth-century critics, he offered a classical paradigm against ‘Jansenist pessimism’,⁴⁹ which saw our empirical perception of the world as *tout court* a manifestation of God’s intentions and purposes – the ubiquity of evil and human suffering testified to God’s indifference and His lack of desire to save everyone. Contrariwise, Malebranche denied the legitimacy of this ‘epistemological intellectualism’: we cannot reach God’s own reasoning through phenomena, but only discover the positive laws of his will, and accidental evil is merely an indirect consequence of the principle of simplicity – a ‘divine economy’ – underlying such definite laws. The moral completeness or details of reasoning behind them are not open to us, and the empirical grasp of laws, along with a rational knowledge of their ‘subservience’ to moral completeness, is all the certainty that human intellect can achieve.

Additionally, Malebranche’s emphasis on the fundamental role of ‘modalities and sensations’ in grasping intellectual and moral ideas represents an intriguing aspect of voluntarist epistemology in our recognition of the corporeal world – an approach to which eighteenth-century Physiocrats were greatly indebted.⁵⁰ This aspect is often overshadowed by Malebranche’s denunciation of the pathological consequences of the senses. In fact, he refers to pain as a ‘revelation’ in *Dialogues on Metaphysics and on Religion* and, in a wry but serious tone, points out that ‘We are Christians’ and ‘We are not deaf’ are two related consequences of the same law:

But without the laws of the union of the soul and the body, your entire library would be no more than black and white paper. ... How are you a Christian? It is because you are not deaf. ... It is evident that these laws are of utmost importance in religion, morals, the sciences, society, and for the public and the private good.⁵¹

In contrast to classical-Cartesian or Lockean intentionality, Malebranche did not believe that there should be an intermediate ‘sensory form’ or ‘sensory content’ between sensory activities and intellectual ideas. Every sensation necessarily contains ‘an irreducibly intellectual element of judging or seeing that’;⁵² through sensory activities, the mind gets

universal concepts and obtains a direct intellectual connection with God. Sensations, as voluntary effects of God, are themselves moral activities, embodying a theodicy that spans from the fall of organs to redemption rooted in nature. This theodicy, as we have seen, is realized through the law of ‘mind–body union’ as a contingent or arbitrary law of God. Both physical and moral laws can only be known through our relationship with God’s will, that is, through participating perceptually in the world as a mind–body union.

Based on the clarification of these voluntarist dimensions, we arrive at a crucial aspect of Malebranche that has been obscured by his ecclesiastical intellectualism and Thomistic-style moral law, which comprises the final thesis of this paper: (4) a *political voluntarism*, in which political legislation mirrors a metaphysical and epistemological voluntarist structure akin to natural legislation.

2. Natural law and political voluntarism

2.1. Natural law as moral law

It is not self-evident to link what Malebranche said about the anthropomorphic legislator and His legislation to their counterparts in secular politics. A theory of ‘natural law’ as something moral or political, first of all, is seldom found at length in Malebranche’s relevant discussions. It is not that he did not attempt to give such a sense: when he described the ‘essential rule’ of God as a rule of ‘*justice*’ and asserted that its norms (e.g. not punishing an innocent man) cannot be violated, even by God Himself, he was referring to something that makes sense only to moral subjects. In doing so, he defended the univocity of the moral principle as applicable to both nature and human society. In the *Dialogues*, he argues that God is capable of integrating ‘the physical’ with ‘the moral’ and aligning ‘the motion of bodies’ with ‘the volitions of angels and men’, thereby assuming responsibility for regulating their consequences.⁵³ This means that the moral scope of free agents’ actions also falls under divine legislation – these actions should not only exhibit coherence in mechanical efficacy but also align with God’s wisdom and justice. Moreover, in *Treatise on Ethics*, he insists that, by ‘contemplating the intelligible substance’, we share the same set of moral categories and standards of ‘Truth, Falsehood, Justice, and Injustice’ with God – what is discernible as evil or unjust through human reason should also be reflected in God’s reasoning:

[I]t is obvious that Truth, Falsehood, Justice, and Injustice are real and exist for all intelligent beings ... This is because all minds, when contemplating the same intelligible substance, necessarily find therein ... the same practical truths, the same laws, the same order, when they see the relations of perfection existing between the intelligible beings contained in this same substance of the Word, the substance which alone is the immediate object of all our knowledge.⁵⁴

We can also occasionally find some political use of legislative principles, such as the widely cited paragraph of *Treatise on Nature and Grace* where Malebranche draws an analogy between the simplicity in divine law and that in civil law,⁵⁵ although this cannot be seen as something seriously prepared for a political science. The seemingly obstinate, conservative Thomistic stance, however, makes it difficult to relate him to his contemporary natural law and sovereignty theorists. It is essential to Malebranche’s

divine legislator that the principle of justice, unlike physical laws, is not something contingently or positively chosen to be realized:

God has only two laws: order, which is his inviolable law, his natural law, his Word, or his Wisdom, which he loves invincibly; and divine decrees, arbitrary laws, from which he sometimes dispenses; but he never dispenses from them unless order demands it.⁵⁶

Malebranche's moral principles leaned towards a notion of 'immutability' or even 'eternity', as he aimed to disassociate himself from the view that morality is contingent upon indefinite reasoning (and thereby could only be founded on arbitrary will or efficient power to cause). The physical world does not have to be created, nor does it have to be created in this way or its laws always followed with general volition. But such a world, if it is to be created, is created according to a moral rule of justice is something called necessary and essential. Here, Malebranche consciously likens God's legislation of physical laws to the legislation of civil laws by human legislators: His selective realization of an accidental structure or order presupposes an immutable 'natural law' as moral law. Thus, Malebranche assigned different metaphysical certainties to *laws of motion* and *moral principles*; when he revived the teleological God, he also resurrected the eternal reign of a Thomistic God in accordance with the order of good. In the process, he risked reducing moral laws to corollaries of eternal moral truths that leave no other choice.

'Natural laws', as moral laws, cannot be assimilated into physical laws due to their different metaphysical status and, more crucially, the different ways that they are followed. We cannot have eternal and infallible perceptions of justice through the 'contemplation' of moral laws: Malebranche's theory of 'vision in God' is always preconditioned by the limit of our reason and a fundamentally divergent reason-will relationship.⁵⁷ Especially, the great disparity between God as the legislator of physical and moral laws and the *secular sovereign* as the legislator of civil laws makes it difficult to envision how their legislations could share an analogous structure. For a secular sovereign whose reason is fallible and whose will is always 'particular' and usually also 'absolute', 'blind' and 'bizarre',⁵⁸ the interpretation of natural law cannot achieve equivalent certainty. As a result, incorporating natural law into a system of secular positive laws cannot generate obligations comparable to those owed to God Himself. Malebranche adhered to the tradition that our perception and observance of God's moral law are unmediated; through conscience, everyone, whether subject or prince, is directly responsible to God.⁵⁹

A classical rejection of the 'analogy' between divine and secular legislators accompanies an anti-voluntarist view of the moral principle of legislation in Malebranche's text. In the *Dialogues*, he criticizes the prevalent view that God 'has no rule in His plans other than His mere will' and 'His wholly arbitrary will is the sole rule of His actions', which could deprive the universe of 'All the beauty' as we know and perceive it.⁶⁰ A similar stance appears in his criticism of Boursier, a theological 'positivist' who treated God as a literal 'sovereign' for whom the legitimacy of His laws is derived simply from His will. Here, Malebranche criticizes and satirizes Hobbes and Locke for their voluntarism, arguing that it establishes 'the law of brutes':⁶¹

If, I said, God were only omnipotent, and if he were similar to the Princes who glorify themselves more in their power than in their nature, then ... Hobbes, Locke & some others, would have discovered the true foundation of morality: Authority & power-giving

without reason, ... since he [Boursier] says in several places, that there is no reason for divine wills, except these wills themselves; his quality of Sovereign, of Almighty, of Being of beings, gives him the right to everything.⁶²

According to what he understood of the two English theorists, the claim of an unlimited right 'to everything' and the denial of the might-right distinction presuppose an indifferent God who gives nature and human society no morality other than blind force; this charge, as we have seen, might be more (although not particularly) appropriate for Spinoza. Such an anthropomorphic God is a projection of a human autocrat who uses their power arbitrarily and capriciously. Behind this is Malebranche's rejection of their empiricism and nominalism, which support a 'merely-conceptual' theory of moral ideas – for Malebranche, moral principles in both divine and secular legislation possess an intellectual, deontological existence in God, and this must be distinguished from our accidental perceptions or choices:

If the soul forms its ideas by a vital act, this is the term we use, and that our ideas distinguished from our perceptions are only chimeras, Pyrrhonism will be established, HOBBS and LOCK, authors highly esteemed by many people, will be right; there will no longer be either true or false immutably such, neither just nor unjust, nor science, nor morality.⁶³

While opposing Locke's general use of the determinacy of 'a superior will' or 'God's will'⁶⁴ (which is perhaps why the two Englishmen are juxtaposed here), Malebranche consistently emphasized the substantial rationality inherent in the 'eternal' and 'immutable' moral ideas when discussing the divine legislator, and distinguished this image from the anthropomorphic image that his critics attempted to give.

Therefore, although Malebranche's theories were, according to Riley's classical research, 'politicized' by his contemporary critics like Arnould, Bayle, Boursier and Régis,⁶⁵ and later French thinkers like Montesquieu, Diderot, Rousseau and Sieyès were actually utilizing his notion of *volonté générale* to account for political function or legitimacy,⁶⁶ there has still not been decisive evidence that Malebranche himself attempted to project an image (itself problematic) of a sovereign lawmaker for nature onto a secular sovereign. Those interested in finding an innovative theory of civil law might also be disappointed, as he appears to reiterate the ecclesiastical position that the conservation of the state is aimed at the church, not the other way around, in *Treatise on Ethics* II.9, which is perhaps the only chapter in his works that can be called a text of 'political philosophy'.⁶⁷ Frank argued that, for Malebranche, an analogy can be drawn between politics and theology only 'incidentally', for his political order is itself contained in and regulated by the general order of justice, which prevents a 'Schmittian' transformation from the theological image to a self-coherent political image from the outset.⁶⁸ Carl Schmitt (1888–1985), the notorious German legal theorist, claimed in his *Political Theology* that, due to the history and structure of modern politics, 'all significant concepts of the modern theory of the state are secularized theological concepts';⁶⁹ secularization, in this context, is understood as the process of projecting sacred or ecclesiastical qualities onto earthly organizations or relationships, thereby endowing them with a familiar and justifiable legitimacy that operates autonomously. Among Schmitt's various examples is the concept of 'sovereignty' in Rousseau – a key inheritor of the politically extended tradition of Malebranche's *volonté générale* – who defined the sovereign as the one who can act arbitrarily without intending evil or particularity:⁷⁰

The metaphysical proposition that God enunciates only general and not particular declarations of will governed the metaphysics of Leibniz and Nicolas Malebranche. The general will of Rousseau became identical with the will of the sovereign; but simultaneously the concept of the general also contained a quantitative determination with regard to its subject, which means that the people became the sovereign.⁷¹

Notably, this ‘theological-political analogy’ is not an attempt to invest politics with divine significance; rather, it is a process of de-theologizing, aiming to blur the boundary between the two kinds of agent and to accommodate secular events within a rational structure of internal coherence. It is precisely in this sense that Frank emphasized Schmitt’s observation cannot be applied to the case of Malebranche – he offers a ‘theological politics’ rather than a ‘political theology’, as both politics and theology reflect ‘the same immutable “order of justice”’,⁷² and the identities of sovereigns and subjects as individual participants in God’s order take insurmountable precedence over their roles within the political sub-order. According to this view, Malebranche’s understanding of politics did not fall outside the framework of classical Augustinianism; if he were to have a political philosophy, it could only be limited to a ‘restatement’ of his theology, demanding that the sovereign rule rationally in accordance with an eternal moral order, fulfil the conditions for earthly peace, and refrain from presumptuous imitations of God. This paper, nonetheless, tries to refute Frank’s view by showing that Malebranche understood secular sovereignty as an exclusive imitation of God’s omnipotence and used a voluntarist structure to describe both divine and political sovereignty – based on an ‘absolutist’ model scattered throughout *Treatise on Ethics* (1684). In the sense of a monopolized understanding and a selective realization of rational norms, Malebranche is no less voluntarist and ‘absolutist’ than his theoretical opponents. By clarifying this metaphysical and epistemological voluntarist structure in political legislation, Malebranche’s robust version of a ‘theological-political analogy’ can be unfolded.

2.2. Malebranche’s political voluntarism

The political relevance of Malebranche’s theology is first manifested in his frequent and unconventional use of ‘sovereign’ (*souverain*) to describe God and God-related qualities. In *The Search After Truth*, he typically refers to God as ‘the Sovereign Being’ (*l’être souverain*) and calls His reason and power ‘sovereign reason’ and ‘sovereign power’; also, he does not appear to reject Descartes’ depiction of God as a ‘sovereign legislator’, despite his criticism of the creation of eternal truths.⁷³ It cannot simply be an early modern synonym for the biblical ‘lord’ (*adon*); as a French priest familiar with his contemporary political theorists, he was very unlikely to be ignorant of Jean Bodin and his revolutionary notion of *souveraineté*, a penetrating source of power and legitimacy that dominated the political thinking of his era. In modern reflections, it is often associated with a school of ‘absolutism’,⁷⁴ emphasizing the indivisibility, impunity and secular ultimacy of sovereign power – features that formed the core of nearly all sovereignty theories of the time. Bodin famously insisted on several substantial obligations of sovereignty, including obedience to divine and natural laws, the fulfilment of covenants, and adherence to the Salic law (the ‘fundamental’ law of the French Kingdom).⁷⁵ Nonetheless, he was reluctant to grant subjects the legitimacy to question or actively resist sovereign judgment by invoking these

superior ‘meta-political’ laws or norms. He notoriously denied that a sovereign with a legitimate title could be challenged *de jure* for *de facto* impious or tyrannical behaviour:

But if the prince be an absolute Sovereigne, as are the true Monarques of Fraunce, ... it is not lawfull for any one of the subjects in particular, or all of them in generall, to attempt any thing either by way of fact, or of justice against the honour, life, or dignitie of the soveraigne ... ; For as to proceed against him by way of justice, the subject hath no such jurisdiction over his Sovereigne prince: of whom dependeth all power and authoritie to commaund.⁷⁶

Bodin rejected the private invocation of superior laws, not only because the obligation to obey is inherent within them but also because individuals lack the grounds to launch a ‘jurisdiction’ against the ‘authority’ of sovereign reason that guides such actions. This raises a core issue in early modern natural law: how should ‘moral law’ be interpreted as *civil law*, and by whom. Although both subjects and the sovereign follow natural law according to their respective consciences, natural law, as moral law, usually does not define or determine the rightness or wrongness of specific actions. It, according to the Thomistic tradition, needs to be ‘determined to something special’ in order to be applied.⁷⁷ What truly matters is not the injunctions to refrain from murder, theft or adultery but the definitions of what constitutes murder, theft and adultery. This is how civil laws become ‘positive’ with regard to natural law, and we have observed a similar structure in the relationship between Malebranche’s physical laws and general moral principles, which he indeed referred to as God’s ‘natural law’.⁷⁸

In fact, in the chapter about ‘political philosophy’, Malebranche employs an analogous structure to explain the superiority of the secular sovereign’s reason over private reason:

But whether or not a Prince has this grand design of making an immortal glory for himself by working for eternity, ... it is not for individuals to criticize his conduct. And provided that he requires nothing except through the *natural* rights given him by the commission which he has from God, we owe him obedience in all things, no matter what dignity [or rank] we have in the Church.

It [Disobeying] is establishing ourselves as judges over our sovereign, to criticize his conduct. It is attributing a sort of independence to oneself, to want to render obedience only according to *one’s own lights*. It is a contempt of power, and a revolt against it, *to pretend that it ought to give reasons for its actions to any others* except the One Who established it.⁷⁹

Like divine legislation, secular legislation is also ‘arbitrary’. While it undoubtedly follows its own rational principle, what makes a law a law – its ‘legality’ – is not a piece of reasoning or deduction, but the authority that ensures it is undisputedly obeyed. It is a breach of the legal order to challenge the sovereign’s arbitrary laws through the private use of ‘reason’; God’s laws are consistently enforced, regardless of whether His subjects have the reason to know His plan or know His plan *sufficiently* – as are the laws of secular legislators. Malebranche’s ‘*political voluntarism*’ thus contains two layers that correspond to his structure of divine legislation: (1) a ‘*meta-political voluntarism*’, according to which civil law is not inevitable in relation to natural law but rather a contingent and arbitrary expression of it, and (2) an ‘*epistemological voluntarism*’ concerning civil law, according to which its certainty and legality derive solely from our relationship to the will of the legislator and its voluntary consequences. In both the ‘meta-political’ origin of civil law and its epistemological validity, Malebranche’s political structure displayed a striking affinity with his physical structure

and his contemporary sovereignty theories. This structure stems from a certain analogy with divine legislation. Like physical laws, secular positive laws are and can only be a particular, selective expression of the fundamental moral principle, according to the legislator's own reasoning. They are by no means deducible, but the certainty of the will prevents subjects from citing innumerable other possibilities against the laws' contingency. Like the divine legislator, the secular legislator establishes the relationship between the efficacy of positive laws and those who obey them through voluntary actions – interpretation, promulgation, judicature – that are independent of any intellectual discord.

This political voluntarism is, decisively, supported by a core attribute of Malebranche's secular sovereign, based on an exclusive imitation of the 'almighty God' (*Dieu tout-puissant*). This helps us clarify the originality of Malebranche's *Treatise on Ethics* II.9, which underlies a seemingly conservative discussion of the church-state relationship. It is held that the secular sovereign has such a 'natural right' to act without explaining their reasons to anyone except God, and therefore has a power 'more absolute' than that of the bishop:

The prince is image of almighty God, and is His minister on earth; the bishop is the image of Jesus Christ, and His Vicar in the Church. ... Nevertheless, the prince has a more absolute power than the bishop. He has the authority to make laws, and is not subject to them. He can act imperiously without having to give a reason for his conduct to any man. For it seems that he has more relation to God as power than to God as reason, more to God clothed in glory and majesty than to God made man and like unto us.⁸⁰

The prince's exclusive, one-dimensional imitation of God 'clothed in glory and majesty' determines the legality of civil laws. As Malebranche consistently emphasized, this does not mean that the prince's voluntary actions lack the support of reason. Rather, it means that their (always-fallible) reason and judgment have no bearing on subjects' obligation, just as human cognition, obedience and appreciation of physical laws have no bearing on God's own sufficient reason. 'Meta-political' reason does not determine the prince's legislation or governance since subjects cannot grasp or judge it; it remains irreproachable, and the prince has no duty to make it comprehensible. The 'meta-political' will, as an image of the irresistible will of God, determines the structure of the political world and its relationship with subjects.

The distinction between dominance and persuasion and between coercive power (*potestas*) and rational authority (*auctoritas*) is a familiar tradition in both Christianity and classical politics. Malebranche's insight, however, lies in his interpretation of this as a separation between the legitimacy of 'absolute power' and the rational 'counsel' (*conseil*) guiding that power, a distinction that critically engaged with his contemporary theories of sovereignty. Despite his emphasis on the teleological priority of the church, Malebranche viewed the state and the church as two strictly independent entities and called the rights that they acquire through mutual empowerment 'rights by concession' (*droits de concession*) rather than delegation.⁸¹ Moreover, he even seemed to deny that the church should play a role in the spiritual affairs and political rationality of the prince. While he did not believe that absolute power could give the sovereign reason a higher rank before God, he did not assert that this reason should refer to or follow the teachings of clergymen. In fact, he claims that princes should directly establish their relationship to divine law and 'the fundamental laws' through their own reason, without the intermediary of 'counsels of men', who are not to be trusted:

It is for sovereigns to examine their obligations before God, in the light of the immutable Order and the divine law, rather than deferring to the counsels of men, who are almost always flatterers. Sovereigns must also consult the fundamental laws of the state, and consider them as the ordinary rules of their conduct.⁸²

The radical nature of this passage is brought to light if we consider that the clergy are also men and they, in the political practice of early modern France, often occupied important positions in the Royal Council (*Conseil du Roi*) and other consultative bodies to the king. The most quintessential one of them was, certainly, Cardinal Richelieu, whom Montesquieu described as ‘filled with despotism’⁸³ and was decisive for the theory and practice of the French absolutist regime. Richelieu was famous for his realist *raison d'état* and for cloaking it in a ‘Thomistic style of political thought’⁸⁴; in the *Political Testament* dedicated to Louis XIII, the lord of Malebranche’s father, he stresses that successful absolutism relies on a certain coordination between the monarch and the ‘council’. He tries to convince his scrupulous, indecisive monarch that there is no need to worry about conscience or sin before God since they are the responsibility of the ‘council’ and the ‘theologians’ headed by Richelieu himself. He regards seeking necessary intellectual support from the ‘council’ and ‘councillors’ as one of the central duties of a monarch; even for a competent prince, the best approach is to ‘do nothing without good advice’.⁸⁵ It is the reliance on the rational authority of consultative or ecclesiastical institutions that Malebranche explicitly denied, although he did so in order to better realize the monarch’s own piety and authority rather than to make *raison d'état* infallible in religious matters.

In the seventeenth century, doctrines that required sovereign power to refer to or defer to some consultative authority were common and shared by those who emphasized the absolute nature of power (such as Richelieu) and those who sought to rationally regulate, rather than divide, that power. For example, in *Oceana*, James Harrington criticized Hobbes for failing to distinguish between the power of decision and the authority of a senate-council, since power should always be about something compulsory rather than argumentative or suggestive.⁸⁶ Similarly, Pufendorf, who was undoubtedly an advocate of indivisible sovereignty, believed that a ‘limited’ form of power can be distinguished from ‘absolute’ power by establishing an ‘Assembly of the Estates’, an institutional and procedural council appointed and convened by the sovereign themselves, without jeopardizing the latter’s supremacy.⁸⁷ Depriving coercive power of certain deliberative authority was the consensus at the time on how to regulate the essentially unrestrained sovereignty; while Malebranche, on the contrary, believed that the sovereign’s reason and authority could not be achieved by entrusting their own consideration and discretion to others. Private reason, whether that of subjects, clergymen or ministers, is not only excluded from the justification of sovereign will but also from the reasonable reference of sovereign intellect. Thus, he held an even more absolute voluntarist doctrine of political sovereignty, claiming that the efficacy of the will is secularly unconditional and that the rational source of the will should be equally exclusive – originating solely from the sovereign’s direct perception and understanding of God’s moral laws and the fundamental laws. Furthermore, Malebranche did not conceal his contempt for ‘custom’ and ‘example’ – the ‘counsel’ of the past – and considered them even less valuable than ‘the law of pleasure’:

Our inviolable law is Order; it is not custom, which often is opposed to Order and Reason. To follow an example of others without holding it up to Order, is to act like a beast, to act

only mechanically. Though the law of pleasure is, by itself, of no worth at all, it is of more worth to follow that law than foolishly to obey unfortunate and wicked customs.⁸⁸

In this way, sovereign reason is not only irreproachable but, to a certain extent, incomprehensible, since it depends solely on the sovereign's own contemplation of principles.

Due to this thoroughgoing voluntarism in epistemology, a more vivid theomorphic image is projected onto the secular sovereign. They are also a sovereign with irresistible power, bolstered by unchallengeable knowledge. Unlike the holy sovereign, this will cannot be effective without a body; is not defended by an infallible, ever-righteous reason; and is always susceptible to passions and affections. However, in its relation to the subjects that it governs, it is in some way more 'irresistible' than God's will. Since God tends to act by general volition (i.e. natural laws), one can justifiably resist His positive effects (e.g. using an umbrella to block raindrops) without resisting His macro purposes or plans. Conversely, one cannot resist the 'actions of men', which are always from particular volitions, without resisting their 'designs' and thereby 'offending' them:

This question of obedience to laws is not the same with God as with men, with the general cause as with particular causes. When we resist the actions of men, we offend them. For since they act only by particular wills, we cannot resist their actions without also resisting their designs.⁸⁹

To prevent subjects from resisting or offending the sovereign, they must not only obey the sovereign will but also consciously and positively recognize the priority and unknowability of sovereign reason – more so than they understand the author of the laws of nature, which are naturally irresistible. This is perhaps how the will of a prince can *legitimately* be more 'absolute', 'blind' and 'bizarre' than the divine will. Malebranche's political voluntarism, therefore, derives from the analogy that a secular sovereign, like the divine sovereign, positively chooses to implement laws and ensures that they are understood and obeyed simply through voluntary consequences. If, as Malebranche believed, we can know nothing of God as a legislator for nature except through empirical effects, then similarly, we cannot know or consciously obey the content and rationale of human legislation except through the consequences of the will of a human legislator – one who is closer to the God 'clothed in glory' and made the 'sovereign Lord' of nations than to the God with omniscience and unbreakable justice.

2.3. A non-Augustinian Malebranche

Finally, we still need to address a key difficulty: whether and to what extent does this 'political voluntarism' transcend classical Augustinianism,⁹⁰ given that the political order is, in any case, subordinate to the eternal moral order? It is noticeable that the absolutism of Malebranche's era did not deny that subjects under the rule of a secular sovereign are also members of the City of God, and that the earthly peace pursued by secular politics is subordinate to eternal peace. What distinguished this perspective, nonetheless, is its defence of the integrity and legitimacy of politics as an immanently coherent manifestation of the order. In Augustine, we also find a distinction between political power and the authority of faith, along with the assertion that the political *imperium* or *regnum* cannot be legitimately resisted by the reasoning of its subjects. However, Augustine's political obedience rests entirely on his claim that politics lacks substantive

moral defence and his indifference to the regulation and internal order of political operations. For Augustine, politics itself is never subordinate to God in a normative sense; there can be an Augustinian political *apology*, but never an Augustinian political *justification*, since politics lacks the Thomistic *ius* that would allow it to be understood as a normative part of the eternal order. His political obedience, unlike Malebranche's, is not grounded in any 'meta-political' reason or will, but rather in the inevitability of the 'lust for domination' from which politics arises and the mental consequences it brings about. The humility and contempt for political ends caused by this inevitable evil lead us to eternity, which is why the Almighty tolerates and 'makes use of' Nero and why Christians pray for 'Babylon' and Rome alike.⁹¹ A Christian kingdom, the Roman Republic, Babylon and a bandit gang differ only in their principles of organization and fellowship. They have the same moral substance before divinity, and the 'ordered concord' or 'civic obedience and rule' they aim to achieve falls into the same pathological category (namely, glory and the desire for triumph).⁹² Political power does not presuppose a substantive divine morality, nor does divine morality designate a specific political order to manifest itself. The emphasis on political obedience and the distinction between church and kingdom are not intended to uphold a certain political arrangement, but rather to avoid the corruption and degeneration of clerical justice when confronted with political domination – the order or law of the Mind holds absolute priority and solemnity over the order or law of the World, the latter belonging to Malebranche and his contemporaries.

In Malebranche, by contrast, we find not a reaffirmation of that mental order but an emphasis on the inherent morality and integrity of the world itself, which embodies the spirit of laws of nature and theodicy in the seventeenth century. They are concerned with a regulated, normative perfection of nature in its naturality. Nature is regarded as the optimal earthly reality, with evils perceived as such only due to our ignorance of the divine plan embedded in them. This stands in stark contrast to what Elshtain emphasized as Augustinian pessimism, characterized by a denial of grace in nature.⁹³ For Malebranche, the earthly order presupposes an incomprehensible divine reasoning and is sustained by divine will – in Augustinianism, contrariwise, it is itself impious and sacrilegious to question secular imperfections, being trials and tests that lead us to humility. And this paper has argued that an analogous and even more explicit structure leads to Malebranche's emphasis on the legitimacy and internal coherency of the political order, which reflects the voluntarist dimensions he shared with his contemporary sovereignty theories. From the two core paragraphs, we can see that Malebranche echoed Augustine's insistence on the inferiority of nature and politics without inheriting his pessimistic approach. In response to the question of why God distributes natural rewards and punishments equally to the good and the wicked – a classical question answered by Malebranche as we have discussed – Augustine emphasized that natural evil, being evil, can only be justified as a test of divine will:

Someone will say, 'But why did the divine mercy extend even to the wicked and ungrateful?' What are we to suppose, except that it was held out by Him Who daily 'maketh His sun to rise on the evil and on the good, and sendeth rain on the just and on the unjust'? ... He has, however, willed that the good and evil things of this world should be common to both, so that we may neither grasp too eagerly after those goods which are seen to be possessed by the

wicked also, nor dishonourably flee those evils with which even the good are generally afflicted.⁹⁴

Augustine's explanation for the amorality of nature is that not only should divine will and Christian faith remain indifferent to natural good and evil, but also that the mismatch between nature and grace precisely serves a transcendental moral purpose, that is, to let believers learn to endure suffering and despise the unpredictable enjoyment of nature. In this sense, God 'makes use of' good and bad fortunes without providing a recognizable law for their appearance. There is no inherent order or moral law in nature, but only divine order and its representation in the hearts of believers; divine reason does not leave nature with its own rational rules, since the unpredictability and incomprehensibility are themselves evidence of the moral deficiency of nature. For Malebranche, by contrast, nature is itself an emanation of God's morality and justice. Human beings can acquire empirical knowledge of the laws and regularities of nature and can confirm the justice embedded in God's efficacious will, even though He does not expose His own reasoning to us. The regularity of nature must be understood within phenomena – the principle of simplicity is something He arbitrarily follows in His particular and accidental emanation. This means we cannot simply understand or explain the natural order using the principle of the divine order. Nature is a *particular* realm within the eternal order that must be treated *particularly*, even though it is sustained and normativized by a transcendent God.

Similarly, as another particular sphere under the eternal order, politics must be governed by particular laws of domination and obedience, which *requires* – rather than simply *allows* – sovereigns to imitate God and make their will meta-politically absolute and unchallengeable. Things like suppressing private reason and defending the absoluteness of civil law are particular expressions of divine order and are not accidental to the purpose of eternal peace in a pessimistic sense. This is evident in Malebranche's description of the peace and preservation of civil society as 'the duty (*devoir*) of the Prince' and the necessary means for this as the 'natural rights' (*droits naturels*) of the prince⁹⁵ – Malebranche's sovereignty, like that of his contemporaries, is a normative status endowed with sacred legitimacy. This normative status is no less unchallengeable by the clergy in their ecclesiastical duties than by the subjects, as divine order demands that it be secularly absolute. God requires sovereigns to imitate Himself and requires Christian sovereigns to embody the normativity of natural law in their rule, both of which, nonetheless, are unjustifiable for Augustinianism:

Thus, pride is a perverted imitation of God. For pride hates a fellowship of equality under God, and wishes to impose its own dominion upon its equals, in place of God's rule. Therefore, it hates the just peace of God, and it loves its own unjust peace; but it cannot help loving peace of some kind or other.⁹⁶

For Augustine, tyranny and the reign of infidels can be tolerated and indulged by God because pride and domination, as 'perverted imitation of God', can also cause temporal peace and humility in subjects; in this respect, the reign of a wise and devoted Christian is no more just. The piety of a prince makes no difference to the reign, as there is no normative connection between civil society and divine morality, nor is the earthly peace of a regime justified by its conformity to divine law. He sarcastically claimed that good rule and bad rule make a difference only to the prince themselves.⁹⁷ Therefore, while

Augustine believed that domination, though allowed by God, is ‘perverted’, Malebranche emphasized that the domination of a legitimate sovereign, although it can be ‘perverted’, is necessary and justified. For Malebranche, secular sovereigns not only legitimately ‘imitate’ God’s omnipotence, but their discretion is also an irreducible part of the overall order. Politics is not an occasional trial for pilgrims on a pilgrimage; like nature, it participates in the divine order and exists as a particular expression of that order. The order normatively requires nature and politics to have a voluntarist structure, in which the will of the divine or secular sovereign determines the particular form of this expression and establishes its epistemological authority over its subjects. This is why Malebranche’s sovereignty can accommodate a ‘Schmittian’ theological-political analogy: it acknowledges, not less but more than the Augustinians, the relevance of the prince’s reason and will to those of God. The prince imitates His will more than His reason simply because the particularity of the political order, like that of the natural order, can only be sustained by a contingent will that is incomprehensible and unchallengeable by the dominated. The prince’s legislation on civil society faithfully mirrors the voluntaristic structure of God’s legislation on nature, in which a contingent and ‘arbitrary’ decision constitutes the legitimacy and sufficiency of applying the morality of the eternal order to a sub-order.

3. Conclusion

Based on the above discussions, I believe, it is manifest that Malebranche’s systematic use of political language in his descriptions of God and God-related qualities is by no means casual or accidental. It is supported by a ‘theological-political analogy’ in legislation and governance, and a similar voluntarist structure is implemented in the justification of both physical laws and civil laws. This allows his moral philosophy to display much more affinity and comparability with the trend of absolute sovereignty in the seventeenth century than people could have expected from its intellectualist appearance. This paper does not claim that Malebranche was thereby an innovative natural law theorist or a conscious and active defender of absolutist politics, which lacks textual evidence. Nonetheless, he was at least innovative among his contemporaries in describing God as an anthropomorphic lawgiver with purposes and choices, and in projecting the relationship between His will and legally governed creatures onto that between a theomorphic prince and their subjects. This perspective supports an ‘absolutist’, voluntarist interpretation. For Malebranche, political society, like nature, is sustained and regulated by nothing other than the sovereign’s own positive will, which is guided and judged by nothing other than the sovereign’s own perception and discretion of rational principles. Thus, this left ample room for later French thinkers to exclude a teleological, morally-bound lawgiver from politics and instead link the general will with aggregative legitimacy, thereby establishing a new model for political society based on desacralized absoluteness and the interaction and balance of purely efficient powers.

Notes

1. Milton, ‘The Origin and Development of the Concept of the “Laws of Nature”’, 181; ‘Laws of Nature’, 685–6; Garber, ‘Laws of Nature and the Mathematics of Motion’, 134–5. It is shown that Galileo did not develop a universally-applicable concept of physical laws, and Bacon’s

unconventional use of 'laws' of nature was not supported by an innovative, non-ambiguous explanation, and (as will be discussed) Spinoza's use of 'law' did not conform to his meta-physical characterization of God.

2. Malebranche, *Œuvres*, 2: 312; 3: 205–6; 5: 148–9.
3. Nadler, 'Occasionalism and General Will in Malebranche', 32–4; Clarke, 'Malebranche and Occasionalism', 503; Nadler, 'Malebranche and Occasionalism', 507; Pessin, 'Malebranche's Distinction Between General and Particular Volitions', 77–8. Generally speaking, Arnauld portrayed Malebranche's God as a watchmaker who winds up the clock and then stops interfering; he therefore criticized Malebranche's distinction between 'general volition' and miracle, arguing that it turns God's voluntary conformity to laws into a limitation on God's omnipotence. In contrast, Leibniz interpreted Malebranche's causality as a series of continuous, transcendental, *ad hoc* realizations, which thus equates nature with 'eternal miracles'. This difference was brought to light by the debate between Nadler and Clarke, the central issue of which is how to understand the 'generality' of general volition: whether it simply means a particular content in accordance with 'general' laws, or instead, a 'non-particular' content and way of realization.
4. Aquinas, *Opera omnia*, 7: 169–70, 174 [ST I^a-IIae q.94 a.2 co., q.95 a.1 co.]; see Li, *Ziran shehui*, 257–9.
5. Ibid., 7: 154 [ST I^a-IIae q.91 a.2 ad.3]; cf. Suárez, *Opera omnia*, 5: 1 [De Legibus I.i.2]. See Armogathe, 'Deus legislator', 276–7; Adams, 'Power versus Laws', 9–10, 17, 24; Priarolo, 'Force de Loi', 115–7. Armogathe demonstrated that the Latin *lex* had a 'polysemy', referring both to a juridical, promulgated law (*legere*) directed at humans and to an eternally binding law (*ligare*) applicable to all creatures. Adams shew that no 'law' of nature existed in the concurrentist causality of Aquinas, Scotus and Ockham. This 'merely-metaphorical' understanding was faithfully reflected in Suárez, who distinguished '*necessitas naturalis*' from proper obedience. A similar tendency can sometimes be seen in early-modern theorists such as Robert Boyle, who believed that motions of inanimate bodies are defined by 'real power' rather than normative laws.
6. Aquinas, *Opera omnia*, 7: 153 [ST I^a-IIae q.91 a.1 co.].
7. Milton, 'The Origin and Development of the Concept of the "Laws of Nature"', 190–1; Osler, 'Eternal Truths and the Laws of Nature', 350. Milton and Osler pointed out that there was a theoretical connection between theological voluntarism and philosophical nominalism (and likewise, between intellectualism and realism), for the denial of 'intermediate' ideas or entities between God and particular beings implies the contingency and arbitrariness of the created order.
8. Descartes, *Philosophical Writings*, 1: 240–2 [AT 8-1:62–5].
9. Ibid., 1: 202–03 [AT 8-1:15–16]; cf. 2: 258 [AT 7:374–5].
10. Schmaltz, *Descartes on Causation*, 105 ff., 125–8.
11. Descartes, *Philosophical Writings*, 2: 291–2 [AT 7:431–3]; 3: 25–6 [AT 1:151–3].
12. Spinoza, *The Collected Works*, 2: 510–11 [G III/279]; see Curley, 'The State of Nature and Its Law in Hobbes and Spinoza', 112–14; Miller, 'Spinoza and the Concept of a Law of Nature', 271. Curley shew that Spinoza denied the possibility of prescriptive natural laws by the union of will and intellect; Miller shew that Spinoza took natural law as a criterion of possibility rather than of human reason.
13. See Garber, 'Mind, Body and the Laws of Nature in Descartes and Leibniz', 116–18; 'God, Laws, and the Order of Nature', 65–6; 'Laws of Nature and the Mathematics of Motion', 138–9; Hattab, 'Early Modern Roots of the Philosophical Concept of a Law of Nature', 29. Also, Descartes refrained from attributing 'laws of nature' to motions of mind and at least some of the motions of animated bodies.
14. Spinoza, *The Collected Works*, 2: 125 [G III/57].
15. Ibid., 2: 134 [G III/65].
16. See note 13.
17. Malebranche, *Œuvres*, 5: 148; *Philosophical Selections*, 264.
18. Moreau, 'The Malebranche-Arnauld Debate', 104.

19. Malebranche, *Œuvres*, 5: 15–19.
20. Psillos, 'Laws and Powers in the Frame of Nature', 100; Favaretti Camposampiero, 'Occasionalism at a Crossroads', 86–7, 101. While Malebranche portrayed God as a transcendental, fully responsible mover, Leibniz criticized it as introducing a 'perpetual miracle'; he tended to realize natural laws within nature and involve genuine causal power of creatures.
21. Leibniz, *Theodicy*, 230–3, 381 [G VI:212–15, 380]; 'From the Letters to Arnauld', in *Philosophical Essays*, 69–70 [G II:37–9].
22. Leibniz, *Theodicy*, 147–9 [G VI:127–8]; 'Monadology', in *Philosophical Essays*, 217–18 [G VI:612–13]. Cf. Hobbes, *De Corpore*, 107–8; Zarka, 'Liberty, Necessity and Chance', 434–5; Pécharman, 'Hobbes's *De Corpore* on Modalities', 50–4. It is shown that Leibniz's use of 'sufficient reason' was largely a critical inheritance from Hobbes's 'sufficient cause' and 'hypothetically necessary' (*necessarium per hypothesin*); Leibniz agreed with Bramhall in that Hobbes's sufficient cause as 'entire cause' can only establish the hypothetical rather than absolute necessity of facts.
23. Malebranche, *Œuvres*, 5: 30; cf. 3: 217–8.
24. Ibid., 5: 28; *Philosophical Selections*, 260.
25. Leibniz, 'Letters to Nicolas Malebranche', in *Philosophical Papers and Letters*, 209–10 [G I:328].
26. Larmore, *Modernité et morale*, 122.
27. Nadler, 'Choosing a Theodicy', 578, 580.
28. Schmaltz, 'Malebranche and Leibniz on the Best of All Possible Worlds', 40–1, 47–8.
29. Malebranche, *Œuvres*, 5: 110 (my translation). The citation is inspired by Schmaltz, 'Malebranche and Leibniz on the Best of All Possible Worlds', 38.
30. Malebranche, *Œuvres*, 5: 29–30.
31. Ibid., 12: 137.
32. Ibid., 16: 83, 141.
33. Ibid., 5: 33; *Philosophical Selections*, 262.
34. Cf. Schierbaum and Müller, 'Voluntarism', 2. 'Theological voluntarism', according to their definition, holds that God's will is 'crucial to explaining the obligatory character of actions'; if a similar definition were adopted for the legislation of nature, Malebranche would be considered a typical 'voluntarist' for believing in the necessary efficacy of divine will and its 'arbitrary' and contingent conformity to positive laws. This paper, nonetheless, does not develop a discussion base on this broad definition.
35. Malebranche, *Œuvres*, 5: 18–19.
36. Milton, 'The Origin and Development of the Concept of the "Laws of Nature"', 185.
37. See Arnauld, *Œuvres*, 39: 203–4; Moreau, 'The Malebranche-Arnauld Debate', 100–4.
38. See notes 62 and 63.
39. Malebranche, *Œuvres*, 5: 20.
40. Ibid., 5: 29, 47.
41. Ibid., 5: 11–12 (my translation); cf. 5: 51.
42. Moreau, 'Malebranche on Disorder and Physical Evil', 83–4; Schmaltz, 'Malebranche and Leibniz on the Best of All Possible Worlds', 45–7.
43. Malebranche, *Œuvres*, 12: 215; cited from Schmaltz, 'Malebranche and Leibniz on the Best of All Possible Worlds', 46.
44. Larrère, 'In Search of the Newton of the Moral World', 258.
45. Malebranche, *Œuvres*, 5: 27.
46. Ibid., 12: 137–8; *Dialogues on Metaphysics and on Religion*, 95–6.
47. Malebranche, *Œuvres*, 5: 27–8.
48. Ibid., 11: 19.
49. Larrère, 'Malebranche revisité', 120.
50. Mirabeau and Quesnay, *Philosophie rurale*, 1: xxviii; see Sonenscher, 'Physiocracy as a Theodicy', 333–5, 338; Bryan, 'Nicolas Malebranche and the Physiocrats' Corporeal Critique', 24–6. For Malebranche, the moral burden of sensory perception is also reflected in a Cartesian-style 'teaching of nature' that links sensory stimuli to moral or prudential judgments of right

and wrong and to what is beneficial or detrimental. This inspired the Physiocrats to derive a coherent moral-economic order from instinctive *évidence* (which appears as a crucial concept in Quesnay and Mirabeau's long quotation of Malebranche's *Treatise on Ethics*) and 'the basic cognitive facts of human physiology'.

51. Malebranche, *Œuvres*, 12: 287; *Dialogues on Metaphysics and on Religion*, 225.
52. Jolley, 'Malebranche on the Soul', 40–2. Jolley called it an 'adverbial theory of sensation'.
53. Malebranche, *Œuvres*, 12: 254–7.
54. *Ibid.*, 11: 19; *Treatise on Ethics*, 46.
55. 'The great number of laws of a State often shows little penetration and breadth of spirit in those who have established them: it is rather the experience of need, than a wise foresight which has ordered them.' Malebranche, *Œuvres*, 5: 46 (my translation); see Riley, *The General Will Before Rousseau*, 31–2. This is where Riley gave the classical thesis that the theological concept of *volonté générale* was explicitly 'legalized' and 'politicized'.
56. Malebranche, *Œuvres*, 5: 34 (my translation).
57. *Ibid.*, 1: 438–9; Schmaltz, 'Laws and Order', 109–11.
58. Malebranche, *Œuvres*, 5: 189; 16: 93.
59. *Ibid.*, 11: 225.
60. *Ibid.*, 12: 220–1; *Dialogues on Metaphysics and on Religion*, 168–9.
61. Malebranche, *Œuvres*, 16: 93.
62. *Ibid.*, 16: 98. The translation is mine but inspired by Riley, 'Malebranche and Natural Law', 63.
63. Malebranche, *Œuvres*, 19: 842 (my translation). The citation is inspired by Douglass, *Rousseau and Hobbes*, 33.
64. Locke, *Questions concerning the Law of Nature*, 103, 211.
65. Riley, *The General Will Before Rousseau*, 46–7; 'General and Particular Will in the Political Thought of Pierre Bayle', 186–7; 'Malebranche and Natural Law', 62.
66. Riley, *The General Will Before Rousseau*, 62–3; Douglass, *Rousseau and Hobbes*, 57; Frank, 'The General Will Beyond Rousseau', 338–40.
67. Malebranche, *Œuvres*, 11: 224.
68. Frank, 'Permutations of the Theological-Political Analogy', 110–15, 119.
69. Schmitt, *Political Theology*, 36.
70. *Ibid.*, 46.
71. *Ibid.*, 48.
72. Frank, 'Permutations of the Theological-Political Analogy', 114, 119.
73. Malebranche, *Œuvres*, 1: 457; 2: 309; 3: 136, 247.
74. Cuttica, 'A Thing or Two About Absolutism and Its Historiography', 288; Lee, *The Right of Sovereignty*, 149. Cuttica and Lee proved that the concept of *absolutisme* originated from a post-revolutionary French historiographical narrative of *ancien régime*. Although the label 'absolutism' has often been applied to unlimited and extraordinary claims to despotic power in historical contexts, 'absolutism' or absolute sovereignty does not in itself contain a description of an unregulated manner of ruling or the reckless character of princes. To the contrary, many versions of 'absolutism' actually maintain the obligation of secularly ultimate power to obey divine or natural laws, with God as their author.
75. Engster, 'Jean Bodin, Scepticism and Absolute Sovereignty', 491, 495–8; Salmon, 'The Legacy of Jean Bodin', 503–4. A theomorphic sovereign as 'a direct representative of God on earth' was already prevalent in Bodin, who gave the sovereign will, rather than reason or custom, the monopoly of legal rights.
76. Bodin, *The Six Bookes of a Commonweale*, 222.
77. Aquinas, *Opera omnia*, 7: 175 [I^a-IIae q.95 a.2 co.].
78. See note 56.
79. Malebranche, *Œuvres*, 11: 224–5; *Treatise on Ethics*, 190. My own italicizing.
80. Malebranche, *Œuvres*, 11: 221–2; *Treatise on Ethics*, 188.
81. Malebranche, *Œuvres*, 11: 223–4.
82. *Ibid.*, 11: 225; *Treatise on Ethics*, 190.

83. Montesquieu, *The Spirit of the Laws*, 56 [5.10].
84. Meinecke, *Machiavellism*, 151–2; Thomson, ‘France’s Grotian Moment?’, 387; Hamilton, ‘Hobbes the Royalist, Hobbes the Republican’, 424–5.
85. Richelieu, *Testament politique*, 192, 211–14.
86. Harrington, *The Political Works*, 163.
87. Pufendorf, *Of the Law of Nature and Nations*, 700–1 [VII.6.12].
88. Malebranche, *Œuvres*, 11: 174; *Treatise on Ethics*, 156.
89. Malebranche, *Œuvres*, 11: 26; *Treatise on Ethics*, 50.
90. I owe my thanks to one of the reviewers for raising this constructive dimension, the clarification of which is essential to the clarity and completeness of the paper’s thesis.
91. Augustine, *The City of God*, 224–5, 962 [V.19, XIX.26]; see Burnell, ‘The Status of Politics in St. Augustine’s *City of God*’, 13–14; Weithman, ‘Augustine’s Political Philosophy’, 245.
92. Augustine, *The City of God*, 147–8, 945 [IV.4, XIX.17]; cf. Martin, ‘The Two Cities in Augustine’s Political Philosophy’, 211; Clark, ‘*Imperium* and the City of God’, 60–1, 69.
93. Elshtain, *Augustine and the Limits of Politics*, 20–1.
94. Augustine, *The City of God*, 11–12 [I.8].
95. Malebranche, *Œuvres*, 11: 222–3.
96. Augustine, *The City of God*, 936 [XIX.12].
97. *Ibid.*, 147 [IV.3].

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